

DPSH MUN 2026

UNCSW

Equality in Every Voice. Strength in Every Woman.

UNITED NATIONS
COMMISSION ON THE
STATUS OF WOMEN



DPSH MUN 2026



AGENDA:

“Analysing cultural relativism in the context of gender based rights with special emphasis on Afghanistan.”

Letter from the Executive Board

Dear Delegates,

It is our absolute pleasure to welcome you to the United Nations Commission on the Status of Women at DPSH MUN 2026. It is an honour to serve as your Executive Board for the duration of the conference. This Background Guide is curated to give you an insight into the case at hand, therefore we hope this acts as only a catalyst for furthering your research, and not limited to just this guide. Please refer to it carefully. Remember, a thorough understanding of the problem is the first step to solving it.

Please note that this Background Guide is not intended to be exhaustive. Its purpose is to equip you with a foundational understanding of the topic, serving as a starting point for your research. Delegates are strongly encouraged to explore additional sources and conduct thorough research beyond the material provided here. The guide cannot be used as proof during the committee proceedings under any circumstances. We urge you to approach this committee with thorough preparation, an open mind, and a willingness to challenge your own perspectives.

Remember: the UNCSW is as much about listening as it is about speaking, and the most impactful resolutions often come from unlikely coalitions.

This committee is expected to move beyond a generic discussion of the agenda and engage in an analytical examination of the gender-based rights situation in Afghanistan. Delegates must undertake thorough research into the country's history, sociopolitical context, and the legal frameworks established by the UNCSW and international humanitarian law. The focus should be on identifying

and addressing the issue at hand on a grassroots-level through innovative and solution-oriented dialogue. We understand that an MUN can be an overwhelming experience for first-timers and assure to guide you through this journey, with that being said please feel free to approach the Executive Board at any point of time. We look forward to meeting each one of you, witnessing the vigor of your arguments, and seeing the creative solutions you will bring to the table.

Goodluck and godspeed,

Chairperson- Sruthakeerthi Syamala

Vice chairperson- Rujula

Introduction to the Committee

The United Nations Commission on the Status of Women (CSW) is the principal global intergovernmental body exclusively dedicated to promoting gender equality and the empowerment of women. Established in 1946 by the United Nations Economic and Social Council (ECOSOC) through Resolution 11(II), the Commission was initially tasked with preparing recommendations and reports aimed at advancing women's rights in political, economic, civil, social, and educational fields.

Over the decades, the Commission has played a pivotal role in shaping the international framework for gender equality. It contributed significantly to the drafting of the Convention on the Elimination of All Forms of Discrimination against Women (CEDAW), supported the adoption of the Beijing Declaration and Platform for Action (1995), and monitors global progress toward achieving Sustainable Development Goal 5: Gender Equality.

Each year, the Commission convenes at the United Nations Headquarters in New York, bringing together Member States, UN entities, civil society organisations, and accredited NGOs to evaluate progress, identify emerging challenges, and formulate policy recommendations. While its conclusions are not legally binding, they frequently influence national legislation, UN programmes, and international policy discussions.

Today, CSW remains one of the foremost international platforms for addressing issues such as gender-based violence, women's political participation, economic empowerment, access to education and healthcare, digital inclusion, humanitarian crises, and the protection of women's rights during armed conflict.

Mandate and Functions

As a functional commission of ECOSOC, CSW's mandate is primarily recommendatory. It is responsible for:

- Preparing recommendations and reports for ECOSOC concerning the promotion of women's rights across political, economic, social, educational, and civil spheres.
- Monitoring the implementation of the Beijing Declaration and Platform for Action and reviewing progress toward global gender equality commitments.

- Identifying emerging challenges affecting the status of women worldwide.
- Facilitating dialogue and cooperation between Member States, UN agencies, and civil society organisations.
- Recommending strategies that strengthen legal protections, institutional capacity, and international cooperation relating to gender equality.

Understanding a Recommendatory Body

A recommendatory body is one that develops policies, recommendations, and international frameworks rather than legally binding decisions.

Within CSW, delegates should focus on producing practical and implementable recommendations that encourage Member States to strengthen existing legal protections and promote gender equality. Appropriate proposals include:

- Expanding girls' education initiatives
- Strengthening legal literacy and judicial capacity
- Supporting women-led civil society organisations
- Enhancing access to healthcare and humanitarian assistance
- Promoting economic empowerment programmes
- Improving data collection and monitoring mechanisms
- Encouraging international cooperation and technical assistance
- Recommending best practices for implementing international human rights obligations

Definitions

Delegates should avoid proposing actions outside CSW's mandate, such as military intervention, binding sanctions, criminal prosecutions, or Security Council enforcement measures. A clear understanding of the following terms is essential for meaningful debate, as they form the conceptual basis of the agenda.

Cultural Relativism

Cultural relativism is the principle that beliefs, customs, traditions, and social norms should be understood within the context of a particular society rather than judged solely by external standards.

In international human rights discourse, it is often invoked by States to argue that cultural or religious values should influence the interpretation and implementation of human rights.

While cultural diversity is widely recognised as an important value, international law maintains that cultural practices cannot justify violations of fundamental human rights. The debate therefore centres not on whether culture deserves respect, but on the extent to which it may influence the implementation of internationally recognised rights.

The Vienna Declaration and Programme of Action (1993) reaffirmed that while national and regional particularities should be considered, it remains the duty of States to promote and protect all human rights and fundamental freedoms irrespective of their political, economic, cultural, or religious systems.

Gender-Based Rights

Gender-based rights refer to the rights and freedoms guaranteed to all individuals irrespective of their sex or gender. These encompass equal access to education, employment, healthcare, political participation, property ownership, freedom of movement, freedom from violence, and equal protection under the law. International legal instruments recognise these rights as universal and indivisible, placing obligations upon States to eliminate discrimination and ensure substantive equality.

Gender Equality

Gender equality is the equal enjoyment of rights, responsibilities, opportunities, and protections by individuals of all genders. It does not imply identical treatment but rather the removal of discriminatory barriers that prevent equal participation in political, economic, and social life.

De Facto Authority

A de facto authority refers to an entity that exercises effective control over the territory and population of a State without necessarily being formally recognised as its legitimate government by the international community.

Since August 2021, the Taliban have exercised de facto authority over Afghanistan. However, the question of diplomatic recognition remains distinct from their obligations under international human rights law.

Historical Context

The relationship between cultural traditions and women's rights in Afghanistan has been shaped by decades of political transformation, conflict, and shifting interpretations of religion and customary law.

Afghanistan witnessed one of its earliest attempts at modernisation under King Amanullah Khan (1919-1929). Influenced by reform movements across Asia and the Middle East, his government expanded girls' education, discouraged forced marriage, promoted women's participation in public life, and supported legal reforms intended to improve women's status. However, these reforms encountered resistance from conservative tribal and religious leaders and were largely reversed following his abdication.

Between 1964 and 1978, Afghanistan adopted a more progressive constitutional framework. Women received the right to vote, gained increased access to higher education, and entered professions including medicine, education, law, and public administration. Urban centres such as Kabul experienced significant improvements in women's participation, although rural areas remained more socially conservative.

The Soviet intervention (1979-1989) accelerated state-led reforms relating to women's education and employment. However, prolonged conflict weakened governance structures and intensified resistance from armed groups who viewed many reforms as incompatible with traditional Afghan society.

During their first period of rule (1996-2001), women faced severe restrictions on education, employment, healthcare access, freedom of movement, and political participation. Many of these policies were justified by the Taliban as consistent with their interpretation of Islamic law and Afghan cultural traditions.

Following the Soviet withdrawal and the subsequent civil war, Afghanistan experienced widespread institutional collapse. This instability culminated in the rise of the Taliban, who established the Islamic Emirate of Afghanistan in 1996.

Following the establishment of the Islamic Republic of Afghanistan in 2001, international assistance contributed to significant gains in women's rights. Millions of girls returned to school, women's representation in Parliament increased, legal protections expanded under the 2004 Constitution, and female participation in civil society and the workforce grew considerably.

These developments changed dramatically after 15 August 2021, when the Taliban regained control of Afghanistan following the withdrawal of international forces. Since then, numerous decrees have restricted women's access to secondary and higher education, employment in many sectors, participation in public spaces, and engagement with civil society organisations. Several United Nations bodies have described these cumulative measures as constituting systematic discrimination against women and girls.

The Afghan case has consequently become one of the most prominent contemporary examples in debates surrounding cultural relativism. Supporters of the Taliban's policies argue that domestic cultural and religious values should determine national legislation, while critics maintain that Afghanistan remains bound by international human rights obligations that prohibit discrimination on the basis of gender.

Legal and Judicial Framework

Understanding the legal aspect of the agenda requires distinguishing between domestic law, religious law as interpreted by the de facto authorities, and international legal obligations. While governments may adopt legal systems reflecting their constitutional and cultural contexts, they remain bound by international treaties they have voluntarily ratified unless they lawfully withdraw from them. Key obligations include:

Afghanistan's Domestic Legal Framework

Afghanistan has experienced several constitutional and governmental transitions over the past century, each shaping the legal status of women differently. The 2004 Constitution of the Islamic Republic of Afghanistan guaranteed equality before the law, recognised equal rights and duties for men and women, and committed the State to observing international treaties to which Afghanistan was a party. It also reserved seats for women in the National Assembly and expanded access to education and public employment.

Following the Taliban's return to power in August 2021, the 2004 Constitution effectively ceased to operate in practice. The Taliban have instead governed through a series of decrees based on their interpretation of Islamic (Sharia) law, without adopting a new constitution. This has resulted in significant legal uncertainty regarding judicial procedures, constitutional guarantees, and institutional accountability.

As the Taliban remain the de facto authorities, questions surrounding formal international recognition do not negate Afghanistan's continuing obligations under international law.

Afghanistan's International Treaty Obligations

Afghanistan remains a State Party to several major international human rights treaties that establish legal obligations concerning gender equality and non-discrimination.

Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW)

Afghanistan acceded to CEDAW in 2003 without reservations. Often described as the international bill of rights for women, the Convention obliges States Parties to eliminate discrimination against women in political, economic, social, cultural, civil, and educational spheres.

- Eliminating discrimination in law and practice.
- Ensuring equal access to education and employment.
- Protecting women's participation in political and public life.
- Addressing gender-based violence.
- Promoting equality before the law.

The CEDAW Committee monitors implementation through periodic State reporting and recommendations. Although its recommendations are not legally binding, they are widely regarded as authoritative interpretations of the Convention.

International Covenant on Civil and Political Rights (ICCPR)

The Covenant guarantees fundamental civil and political rights, including:

- Equality before the law.
- Freedom of expression.
- Freedom of movement.
- Freedom of religion or belief. Participation in public affairs.
- Protection against discrimination.

Restrictions imposed on women and girls that prevent access to education, employment, or public participation have frequently been examined through the framework of the ICCPR by UN human rights mechanisms.

International Covenant on Economic, Social and Cultural Rights (ICESCR)

The ICESCR, also ratified by Afghanistan, recognises rights including:

The right to education.

The right to work.

The right to the highest attainable standard of health. The right to participate in cultural life.

These rights are expected to be realised progressively using the maximum available resources, while ensuring non-discrimination.

Convention on the Rights of the Child (CRC)

Afghanistan is also a State Party to the Convention on the Rights of the Child (CRC), which recognises every child's right to education, healthcare, protection from exploitation, and development without discrimination.

Restrictions affecting girls' education therefore engage obligations under both the CRC and CEDAW.

International Legal Standards and the Role of the UN and Civil Society

- The international human rights framework is founded upon the principle that human rights are universal, indivisible, interdependent, and inalienable. While international law recognises cultural diversity and freedom of religion, these principles cannot ordinarily be invoked to justify discrimination or the denial of fundamental rights.
- The Universal Declaration of Human Rights (1948) affirms equality in dignity and rights for all persons. The Vienna Declaration and Programme of Action (1993) further clarified that although national, cultural, and religious particularities should be respected, States have a duty to promote and protect all human rights regardless of their political, economic, or cultural systems.

Within this framework, several United Nations bodies contribute to advancing gender equality in Afghanistan:

- The Commission on the Status of Women (CSW) develops policy recommendations, promotes international cooperation, and reviews global progress on gender equality. While it cannot enforce compliance, its agreed conclusions often influence national legislation and UN programming.
- UN Women supports women's empowerment through research, technical assistance, advocacy, and partnerships with governments and civil society.
- The United Nations Assistance Mission in Afghanistan (UNAMA) monitors the human rights situation, reports on developments affecting women and girls, and engages with Afghan authorities and the international community.
- The Office of the United Nations High Commissioner for Human Rights (OHCHR) documents human rights concerns, supports accountability mechanisms, and assists Member States in implementing international obligations.

Civil society organisations also play a vital role by providing humanitarian assistance, legal aid, documenting violations, supporting education initiatives, and amplifying the voices of Afghan women. Despite operating under increasingly restrictive conditions, many local and international organisations continue to advocate for gender equality through community engagement, research, and international advocacy.

For delegates in CSW, the central challenge is to formulate recommendations that strengthen these existing mechanisms while respecting the Commission's recommendatory mandate. Proposed solutions should therefore prioritise dialogue, capacity-building, international cooperation, support for civil society, and the effective implementation of existing international legal standards rather than enforcement measures beyond the Commission's authority.

Challenges and Obstacles in Addressing Violations in the Name of Cultural Relativism

The intersection of cultural relativism and gender-based rights presents one of the most complex challenges in international human rights law. While the international community recognises the importance of respecting cultural diversity, it also maintains that cultural or religious practices cannot be used to justify violations of fundamental human rights. Delegates must therefore navigate several legal, political, and social obstacles.

Balancing Cultural Diversity and Universal Human Rights

One of the primary challenges lies in balancing respect for cultural traditions with the universality of human rights. Some States argue that international human rights norms should be interpreted in light of national cultural and religious values. Others contend that allowing cultural exceptions risks undermining universally recognised rights, particularly those relating to women and girls. The Commission must consider how to encourage cultural sensitivity while ensuring that fundamental rights remain protected.

Divergent Interpretations of Religious and Cultural Practices

In many societies, cultural customs and religious teachings are closely intertwined, making it difficult to distinguish between long-standing traditions and religious obligations. In Afghanistan, the de facto authorities have justified several restrictions on women through their interpretation of Islamic law. However, numerous Islamic scholars and Member States dispute these interpretations, highlighting that Islamic jurisprudence encompasses diverse schools of thought. This divergence complicates international dialogue and policy-making.

Limited Enforcement Mechanisms

As a functional commission of ECOSOC, the Commission on the Status of Women lacks enforcement powers. It cannot compel States to implement recommendations or investigate violations independently. The effectiveness of CSW therefore depends largely on political cooperation, international consensus, and voluntary implementation by Member States.

Humanitarian and Security Constraints

Afghanistan continues to face significant humanitarian and economic challenges. Ongoing instability, displacement, food insecurity, and restrictions on humanitarian operations limit access to education, healthcare, and legal services for women and girls. These conditions often hinder both domestic reform efforts and international assistance programmes.

Restrictions on Civil Society

Local women's organisations, journalists, human rights defenders, and civil society groups often face operational restrictions, limited funding, and security concerns. Reduced civic space limits opportunities for advocacy, monitoring, and community engagement, making it more difficult to identify and address gender-based rights violations.

Recent Developments and International Responses

Since the Taliban's return to power in August 2021, numerous policies affecting women and girls have drawn sustained international attention. These include restrictions on secondary and higher education for girls, limitations on women's employment in certain sectors, restrictions on access to public spaces, and requirements affecting freedom of movement. UN agencies have expressed concern regarding the cumulative impact of these measures on women's social, economic, and political participation.

The United Nations Assistance Mission in Afghanistan (UNAMA) has consistently documented developments affecting the rights of women and girls and has called for the reversal of policies that restrict their participation in public life.

The Commission on the Status of Women and UN Women have continued to advocate for women's full, equal, and meaningful participation in Afghan society. Their work has focused on supporting Afghan women through research, policy recommendations, humanitarian programming, and collaboration with civil society organisations.

The Human Rights Council has adopted resolutions expressing concern over the human rights situation in Afghanistan and has strengthened independent monitoring and reporting mechanisms. Similarly, the Office of the High Commissioner for Human Rights (OHCHR) has repeatedly urged compliance with Afghanistan's international human rights obligations.

Several Member States have increased humanitarian assistance while emphasising that aid should reach Afghan civilians, particularly women and girls, without discrimination. International organisations have also expanded programmes supporting remote education, livelihood initiatives, healthcare services, and psychosocial assistance where feasible.

At the same time, discussions within the international community continue regarding the most effective approach to engagement with Afghanistan. While some States advocate continued diplomatic engagement to encourage policy changes, others argue that stronger accountability mechanisms are necessary to address persistent violations of women's rights. These differing approaches underscore the complexity of balancing humanitarian needs, diplomatic engagement, and the promotion of universal human rights.

Questions for Committee Consideration

1. To what extent should cultural relativism influence the interpretation and implementation of international human rights standards?
2. How can the international community uphold the universality of women's rights while respecting cultural and religious diversity?
3. What role should the Commission on the Status of Women play in addressing gender-based discrimination within its recommendatory mandate?
4. How can Member States strengthen cooperation with UN agencies, civil society organisations, and local communities to improve the protection of women's rights?
5. What measures can be adopted to ensure continued access to education, healthcare, and economic opportunities for women and girls in humanitarian settings?
6. How can the voices of Afghan women, local women's organisations, and civil society actors be meaningfully incorporated into international decision-making?
7. What mechanisms can improve monitoring, reporting, and accountability for violations of gender-based rights while respecting the sovereignty of Member States?
8. How can humanitarian assistance be delivered in ways that safeguard the dignity, safety, and participation of women and girls?
9. What best practices from other Member States may be adapted to promote gender equality while remaining sensitive to local cultural contexts?
10. How can international institutions encourage constructive dialogue with de facto authorities while ensuring that internationally recognised human rights remain protected?